

provisions, as noted above, and that they permeate the entire purpose of the agreement. The issues cannot be remedied by severing the offending provisions.

Accordingly, the Court denies the motion.

17. 9:00 AM CASE NUMBER: C25-01575

CASE NAME: DONNA PREVOST VS. CMG MORTGAGE, INC.

***HEARING ON MOTION IN RE: RECONSIDERATION OF DENIAL OF CMG MORTGAGE, INC.'S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS**

FILED BY: CMG MORTGAGE, INC.

TENTATIVE RULING:

Continued by the Court to May 20, 2026. The case management conference set for May 15, 2026, is also continued to May 20, 2026.

18. 9:00 AM CASE NUMBER: N25-2436

CASE NAME: PETITION OF: SONJA TYESI

HEARING ON PETITION IN RE: PETITION TO COMPEL PRODUCTION OF RECORDS

FILED BY:

TENTATIVE RULING:

Summary:

The hearing on Petitioner Sonja Tyesi's Motion to Compel Production of Records is continued to June 3, 2026 at 9:00 a.m. due to untimely service. No appearance is required on April 22, 2026.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing." Furthermore, "if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California" (Emphasis added). Applied here, in order for Petitioner's service to be timely, Respondent should have been served 16 court days plus five calendar days before April 22, 2026. That date is March 25, 2026. Petitioner's proof of service filed on April 15, 2026 demonstrates that Petitioner served Respondent Diablo Valley Ranch's agent for service of process by mail on April 15, 2026. The Court finds that service is untimely. The Court continues this hearing to June 3, 2026 in Department 16 at 9:00 a.m. in order to permit Respondents to file an opposition.

The Clerk of the Court is ordered to serve a copy of this ruling to Petitioner and to agent for service of process for Respondent Diablo Valley Ranch. No appearance is required at the hearing on April 22, 2026.

19. 9:01 AM CASE NUMBER: C25-01459

CASE NAME: RAFAEL PONCE VS. RALPH WADE

***HEARING ON MOTION FOR DISCOVERY PROTECTIVE ORDER LIMITING DEFENDANT'S SPECIAL INTERROGATORIES AND REQUEST FOR SANCTIONS AGAINST DEFENDANT AND THEIR ATTORNEY OF RECORD**

FILED BY: PONCE, RAFAEL

TENTATIVE RULING:

Summary

Plaintiff Rafael Ponce's Motion for Protective Order is **denied**. Each party shall bear their own costs and fees for bringing and defending against this motion.

Background

This case involves a landlord-tenant dispute over real property located at 327 South 9th St., Richmond, California ("Subject Property"), that Plaintiff Rafael Ponce ("Plaintiff") had leased from Defendants Ralph Wade, individually, and as Trustee of the Ralph Wade Trust ("Wade" or "Defendants."). Plaintiff is alleged to have breached the lease by failing to pay rent when due. He then vacated the Subject Property, leaving it with significant damage. Plaintiff's complaint alleges sixteen causes of action, primarily based on a legal theory that Defendants had breached their contract with Plaintiff, as well as breached the warranty of habitability, among others. Plaintiff also seeks exemplary damages. Defendants generally deny the allegations and alleged 18 affirmative defenses.

After moving out of the Subject Property, Plaintiff filed this lawsuit claiming 14 separate defects existed at the Subject Property during his tenancy. After conducting investigations, Defendants filed a Cross-Complaint alleging extensive damage to the Subject Property by Plaintiff caused by his "apparent conversion of the home to a marijuana grow house."

On December 17, 2025, Defendants served discovery on Plaintiff in the form of 167 specially prepared interrogatories, which was accompanied by Declaration of Counsel. Plaintiff objected to the number of interrogatories through the "meet and confer" process with Defendant's counsel. The parties, through counsel, were unable to agree on an informal resolution.

On January 21, 2026, Plaintiff filed this Motion for Protective Order seeking a court order reducing the amount of interrogatories that he needs to answer. The Motion is unclear as to how many interrogatories Plaintiff concedes are relevant and should be answered.

On April 8, 2026, Defendants filed an opposition, essentially claiming that each special interrogatory draft by Defendant addresses a specific factual point necessary for the defense of Plaintiff's claims. For each of the 14 defects specifically alleged by Plaintiff, Defendant has included nine (9) interrogatories for a total of 126 interrogatories all related to the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Tenth, Eleventh, Twelfth, Thirteenth, Fifteenth, and Sixteenth causes of action.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–

2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Protective Order

Under CCP §2034.250, the court may make any protective order "that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense." In seeking a motion for protective order, the party objecting to the scope of discovery must support its objection with admissible evidence establishing the burden, expense, or intrusiveness of the proposed discovery. Cal. Code of Civ. Proc. § 2017.020(a). Counsel should ensure that any declarations supporting a motion for protective order to limit discovery are made by people who have personal knowledge of the facts that support a narrowing of the scope of discovery.

Applied here, the Court finds that Defendants' special interrogatories are relevant as they are likely to lead to the discovery of admissible evidence in this trial. The Court finds that the special interrogatories prepared by Defendant addresses allegations in Plaintiff's claims, and permits the discovery of evidence for the defense of each of these claims. In reviewing the special interrogatories, the Court finds that for each of the 14 defects alleged, Defendant has propounded nine (9) interrogatories for a total of 126 interrogatories. These interrogatories relate to the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Tenth, Eleventh, Twelfth, Thirteenth, Fifteenth, and Sixteenth causes of action contained in Plaintiff's complaint. The Court finds that this level of discovery is reasonable, given that Plaintiff has alleged sixteen causes of action, and is alleged to have damaged Defendant's property by converting it into an illegal marijuana grow house.

Plaintiff cannot, now, avoid answering relevant questions that are likely to allow both parties to

discover information that will either support or refute the multiple allegations contained in their complaint and cross-complaint. Plaintiff chose to assert these allegations. Now, he is required to produce information that provides information relevant to them. To permit Plaintiff to escape his requirement to provide answers to validate each of the facts that support many of the sixteen causes of action in his complaint would contravene the purpose of discovery, which is to eliminate the “sporting theory of litigation and eliminate surprise at trial.” It would also provide Plaintiff an unfair advantage by allowing him to make allegations without an attendant obligation to produce information that support these allegations.

After reviewing the papers submitted by Counsel, and applying the applicable statutory and decisional authority, the Court finds good cause to deny this motion.

Ruling

1. Plaintiff’s Motion for Protective order is **denied**.
2. Plaintiff is ordered to produce verified answers to each of the 167 special interrogatories no later than fourteen (14) days from the date of service of this order.
3. Plaintiff’s request for sanctions is denied. Each Party shall pay their own attorney’s fees and costs in prosecuting and defending against this Motion.

Defendants’ counsel is ordered to prepare a proposed order that conforms to this tentative ruling no later than five (5) days from the date of this hearing and e-file with the Court. A copy of the tentative ruling shall be attached to the proposed order.

**Law & Motion
Add On**

20. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
***HEARING ON MOTION IN RE: SEAL UNREDACTED MOTION FOR SUMMARY ADJUDICATION**
FILED BY: SLIVER'S, LLC
TENTATIVE RULING:

The hearing on this motion is continued to May 6, 2026 at 9:00 a.m. No appearance is required on April 22, 2026.

21. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
***HEARING ON MOTION IN RE: SEAL DEFENDANTS' UN-REDACTED MOTION FOR SUMMARY JUDGMENT (ADVANCED FROM 8/19/26)**
FILED BY: SLIVER'S, LLC
TENTATIVE RULING:

The hearing on this motion is continued to May 6, 2026 at 9:00 a.m. No appearance is required on April 22, 2026.